

Court No. - 21

Case :- WRIT - C No. - 38244 of 2022

Petitioner :- Harishchandra

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sanjay Kumar

Counsel for Respondent :- CSC, Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Dinesh Pathak, J.

The instant petition has been filed disputing the correctness of the electricity bill issued by the electricity department for a domestic electricity connection, bearing account number 781703230615, Sub Division EDSD-II Ghiror, District Mainpuri.

Counsel for the parties agree that in similar facts and circumstances a co-ordinate Bench of this Court has disposed of Writ Petition No. 34797 of 2022 (Ramavtar Singh vs. State of U.P. And 2 Others) by order dated 09.12.2022. The said order is quoted herein below:-

"The petitioner herein is raising a dispute with regard to the violation of the order of Consumer Forum on the part of the respondents.

It is sought to be submitted that the demand raised by the department had been set-aside by the Consumer Forum and the entire bills submitted against the petitioner is illegal. The order passed by the Consumer Forum has not been appended with the writ petition, copy thereof has been provided by the learned counsel for the respondent department. Perusal of the order passed by the Consumer Forum dated 11.11.2022 indicates that the previous bills issued by the respondent department had been set-aside, however, it was directed that fresh bills must be issued for the electricity connection given to the petitioner since the year 2013 on average rate without any interest or surcharge, within a period of 20 days from the date of the order i.e. from the date of installation of the meter. The department was given liberty to revise the electricity charges without any surcharge and interest.

Sri Baleshwar Chaturvedi learned counsel appearing for the department submits that in compliance of the order passed by the Consumer Forum bill has been revised and the copy of revised bill has also been appended herein.

The petitioner herein seeks to challenge the recovery proceedings without having any details of recovery citation, as to whether the recovery under challenge is prior to the order passed by the Consumer Forum or not, we do not find it a fit case for interference. Copy of written instructions is provided to the learned counsel for the petitioner in the Court, who shall intimate the same to the petitioner herein about the revision of electricity bill pursuant to the order passed by the Consumer Forum. In case there

remains any dispute with regard to computation made by the respondents, it is open to the petitioner to approach the Executive Engineer by invoking the provisions of Clause 6.5 of the U.P. Electricity Supply Code, 2005. As on date there is no recovery against the petitioner. We, therefore, do not find any good ground to grant any relief.

Sri Baleshwar Chaturvedi learned counsel for the respondent undertakes that he shall advice to the concerned department to withdraw the recovery citation which were issued and sent to the Tehsil authorities prior to the order passed by the Consumer Forum.

Be that as it may, in case the petitioner files objection to the current computation by invoking the provisions of Clause 6.5 of the U.P. Electricity Supply Code, 2005, no coercive measures shall be taken against the petitioner without disposal of his objection by passing a reasoned and speaking order under due intimation to the petitioner.

The writ petition is accordingly, disposed of."

In view of the admitted fact that the facts of the instant case are similar to the one decided by coordinate Bench by order dated 09.12.2022, quoted above, the instant writ petition is also disposed of on same terms.

Order Date :- 9.1.2023

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